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1 draft: text capture

1.1 draft

1.1.1 introduction

- this chapter proposes a new reading method that harnesses text capture under Sedgwickian logics of reparative, for the purpose of reading the proliferation of transphobic language online and in public life.

Over 25 years ago, Eve Kosofsky Sedgwick poses a powerful question about the point of exposing systemic injustic and oppression. In a conversation with her friend, the activist and scholar Cindy Patton, about the AIDs crisis, and the current governmental neglect and social contempt and hatred for those who suffered from it, Sedgwick realizes that certain kinds of exposure may be futile. Even if it could be proved "that African Americans are worthless in the eyes of the United States; that gay men and drug users are held cheap where they aren't actively hated," Sedgwick writes, "what would we know then that we don't already know?" (*Novel Gazing* 3-4). In Sedgwick's work, this question indexes a shift around reading practices, from a focus on knowledge, "Is a particular piece of knowledge true?", toward method, "What does knowledge do–the pursuit of it, the having and expressing of it?" (*Novel Gazing* 4).

The foundation of *paranoid reading*.

This 30-year-old, foundational observation in Queer Theory, is apt for our current sociopolitical moment. We have traded an antihomophobic backlash for an antitrans backlash. But there is also a key difference, which bears on

knowledge practices: the *proliferation* of knowledge, or at least of language which passes as knowledge. How does the knowledge problem that Sedgwick poses–*what does knowledge do?*–work within an environment of proliferating paranoia?

There is a specific affect that that drives paranoid, transphobic discourse, that is *outrage*.

For example, from *The Heritage Foundation* website, the "Gender" page contains articles with titles like following:

> Sorry Democrats, but Trump's "Two Sexes" Executive Order Is Constitutional
>
> Tyrants of the Imperious Judiciary: Federal Judge Orders "Gender Reassignment" for Child Killer
>
> Trump's Transgender Orders Are Well Within Executive Authority
>
> The American Family in the Crosshairs: How Do Parents Fight Back?
>
> Is the State Department Using "DEIA" to Discriminate Against Men?
>
> Biden-Harris DOJ Prosecutor Targets Trans Whistleblower Doctor Again
>
> Wisconsin Public Schools' Gender Policies Shut Out Parents, Violate Their Rights
>
> Gender Activists Are Aiming to Cut Georgia Parents Out
>
> Persecuted Behind Closed Doors
>
> Why Is Congress Facilitating Prison Rape in the Name of Fairness?
>
> Gender Activists Take Aim at Arizona Parents' Rights

The language of outrage in these titles are driven by a hypocrasy thats manifests through the facetiousness of their wording. For example, the first title leads with an apology, "Sorry Democrats," which, not at all an apology ("sorry not sorry"), effectively redirects the accusation back at the accuser. The facetiousness here of the speaker—who is not sorry but unmistakably offended by transgender peoples' rights to their own gender—points the finger back on themself; in an apology which is a cover for an actual taking of rights, and for the imposition of gender definition, the same exact imposition

that they would claim is being forced upon them, wherein the expansiveness of the "gender identiy" definition is perceived to threaten the concept of binary gender which they've always known and the being respectful of a person's identity is perceived as an imposition. It is like the facetiousness that Sedgwick deftly describes in her own analysis of the term, when it is used by the Justic Whatley in the *Bowers Vs Hardwick* Surpreme Court decision. In a series of observations that unfold out of each other like the paper fortune teller game for children, Sedgwick shows how, like *sorry*, *facetious* is a dumb but effective term, "demonstrating how obtuseness itself arms the powerful against their enemies" (*Epistemology of the closet* 7).

Etymologically, "outrage" has middle English and old French roots, associated with "excess" and "a going beyond." It denotes two things: an atrocious act ("an outrage") or a state of being aroused by such an act ("being outraged"). One might say that outrage denotes a *rage* of being *out*, of being inordinately excessive, of being beyond what is expected and accepted. As such, it is a structuring affect for a certain kind of cisgender identification—precisely the kind which would never call itself that. A cisgender identification that is based on the fantasy, what Judith Butler calls the *phantasm*, that gender nonconforming people takes something away from them. Against the perceived slipperiness of gender and its refusal to stay anchored to stable referents, the assertion of sex as "binary and biological" asserts the body as a fixed ground (Butler, *Who's Afraid of Gender?*).

Sedgwick's proposed reading method, *reparative reading*, draws from a restorative and pleasurable impulse, "to assemble and confer plenitude on an object that will then have resources to offer to an inchoate self" (*Novel Gazing* 28). It is a kind of reading that seeks to replenish and sustain through the generation of new meaning.

Whereas Sedgwick offers reparative reading that responds to the practices of paranoia, I pose it as a kind of reading that responds specifically to the condition of *text capture* by automated systems.

The end of the chapter demonstrates with an example for analyzing political polarization today around debates on gender rights.

In what follows, I look at web scraping, the dominant text capture method today. Drawing from Sedgwick's theorization of reading practices, I propose a re-orientation around web scraping that evokes reparative methods.

1.1.2 text capture

☐ work bot blockers into chapter argument:

- is it a side example of how scraping works or is there a larger argument about resisting blockers?
- is it about ways of scraping slowly, individually? It is difficult to automate resistance, as hacking is about particular affordances of that website.

This section examines how web scraping works on a technical level.

1. HTML, HTTP *Web scraping* is the programmatic extraction of data in the form of HTML code. Below is an example some the HTML code on the "gender" topic page from *The Heritage Foundation*, on `https://Heritage.org/gender`. This section of the page shows the first three articles listed under the "gender" topic.

```
<a href="/gender/commentary/feminists-want-choice-only-when-it-the-right-one" clas
  Feminists Want Choice, but Only When It Is the Right One
</a>

<a href="/staff/jess-hamilton" class="result-card__link" title="article link"><spa
    Jess Hamilton
  </span>
</a><p class="result-card__date"><span>Aug 24, 2026</span>3 min
read</p>
<a href="/gender/commentary/the-quiet-way-gender-ideology-reaches-children"
class="result-card__title js-hover-target" title="article link">The
Quiet Way Gender Ideology Reaches Children</a>
<p class="result-card__date"><span>Jul 29, 2026</span>   3 min read</p>

<p class="result-card__eyebrow">First Principles</p>
<a href="/gender/report/title-ixs-failed-experiment-why-accommodating-sex-differer
title="heritage report" class="result-card__title
js-hover-target">Accommodating Sex Differences Beats Engineered
Parity</a>
          <a href="/staff/scott-yenor-phd" class="result-card__link">        <spar
      </a>
    <p class="result-card__date"><span>Jul 8, 2026</span>   42 min read
</p>
<a href="/defense/commentary/military-effectiveness-should-be-determined-the-war-c
class="result-card__title js-hover-target" title="article
link">Military Effectiveness Should Be Determined by The War
```

```
Department Not Judges</a>
<p class="result-card__date"><span>Jun 29, 2026</span>   4 min read </p>
```

HTML, HypterText Markup Language, is famously difficult to read. It consists of clunky looking componenets called "tags," wrapped in < and > symbols, which contain intstructions on how to display elements like text and images on a page. The HTML tags themselves wrap a bit of text, like the title "Feminists Want Choice, but Only When It Is the Right One," with instructions on where and how to display the title.

HTML extraction is possible by manipulating HTTP requests (described below), which encapsulate web data as it travels over the network. Like an envelope, HTTP inscribes strict instructions for the transit of data, in the form of HTML code, from the original web server to the web browser that is making the request.

The contents of an HTTP request consist of a list of headers, identifying the requester, like "User-Agent," and certain properties about the request.

```
{
    'User-Agent': 'python-requests/2.32.3'
    'Accept-Encoding': 'gzip, deflate, br, zstd',
    'Accept': '*/*',
    'Date': 'Thu, 03 Sep 2026 12:21:09 GMT',
    'Content-Type': 'text/html; charset=UTF-8',
    'Transfer-Encoding': 'chunked',
    'Connection': 'keep-alive',
    'CF-Ray': 'a354b670ee7f41d9-EWR',
    'CF-Cache-Status': 'DYNAMIC',
    'Age': '5583',
    'Cache-Control':
    'max-age=10800, public',
    'Content-Language': 'en',
    'Expires': 'Sun, 19 Nov 1978 05:00:00 GMT',
    'Last-Modified': 'Thu, 03 Sep 2026 10:48:06 GMT',
    'Server': 'cloudflare',
    'Strict-Transport-Security': 'max-age=15552000; includeSubDomains; preload',
    'Vary': 'Accept-Encoding, Cookie, Cookie, Cookie',
    'Via': '1.1 varnish, 1.1 varnish, 1.1 varnish',
```

```
    'x-cache': 'HIT, HIT, MISS',
    'x-cache-hits': '12, 0, 0',
    'x-content-type-options': 'nosniff',
    'x-drupal-cache': 'MISS',
    'x-drupal-dynamic-cache': 'UNCACHEABLE (poor cacheability)',
    'x-frame-options': 'SAMEORIGIN',
    'x-generator': 'Drupal 10 (https://www.drupal.org)',
    'x-pantheon-styx-hostname': 'styx-us-a-b66bcffc5-r9674',
    'x-served-by': 'cache-chi-klot8100088-CHI, cache-lga21935-LGA, cache-lga21965-
    'x-styx-req-id': 'f1f228e9-a784-11f1-b5b4-527fbd316761',
    'x-timer': 'S1788438070.931123,VS0,VE7',
    'Content-Encoding': 'br'
}
```

This request closely mimics the one sent through the browser, when the user types in a URL into the browser search bar. The data it gets back from the HTTP request is also the same as the data that comes to a browser after searching a URL—only the data is intercepted before it arrives at the browser, before it can be assembled into a web page.

2. programmatic ways of scraping web data Web servers employ various forms of "blockers" or mechanisms that deny HTTP requests.

   One way that it denies requests is by checking the `User-Agent`. The python `requests` library, which I used to scrape the `Heritage.org/gender` page, sets the `User-Agent` to `python-requests/2.32.3`, making any HTTP request using that library easy for blockers to detect. By constrast, my Firefox browser running Mac OSX has the following `User-Agent`

   `Mozilla/5.0 (Macintosh; Intel Mac OS X 10.15; rv:152.0) Gecko/20100101 Firefox/152.0`

   And as automated scrapers increase in frequency, so do the bot blockers. Each year of the past few years, bot traffic has increased exponentially, coming mostly from major tech and AI companies, especially OpenAI, META, Google, and Anthropic. According to Cloudflare, 2025 saw increases of 19% in bot traffic (Cloudflare, "From Googlebot to GPTBot: who's crawling your site in 2025").

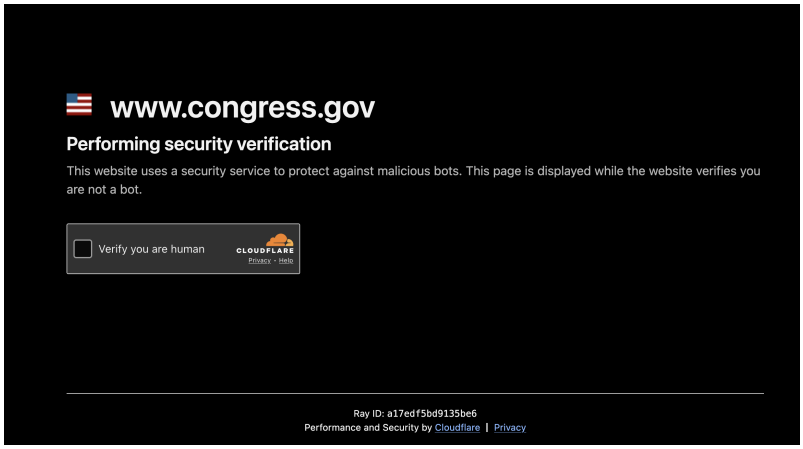


Figure 1: a common captcha

Web providers like Cloudflare have added increasing bot detection like "Challenges" and "Turnstiles" to its web pages (See Fig, 1). Some of these operate under the surface and virtually invisible to the user, such as checking the HTTP request metadata like the "User-Agent." But beyond examining HTTP request data, bot blockers will use JavaScript code to check if the request is from a real web browser, rather than from an automated program. JavaScript, a programming language native to web browsers (discussed in more detail in Chapter 4: Text Display), can inject challenges for the browser to solve, challenges which may or may not involve the user. All of these challenges might require some processing from the browser, and increasingly, they may require the user's interaction to confirm that the request comes from a real browser, not a bot. One popular challenge is the "Security Verification" checkbox, which is increasingly visible across the internet (See Fig #).

3. bypassing blockers: ghost browsers While these kinds of blockers are more advanced, there are ways of overcoming them. One method involves using a virtual or "ghost" browser through python libraries like `seleniumbase`.

   Instead of sending an HTTP request via a python script, `seleniumbase` routes the request through an actual web browser, one that is operated remotely by the python script. When the program is running, a browser window will open seemingly on its own. Depending on what content the user wants to scrape, it can then scroll, click on links, or fill in forms without the input of the user's mouse.

```
from seleniumbase import SB

with SB(uc=True, test=True, locale="en") as sb:
    url = "https://www.congress.gov/search?q=%7B%22congress%22%3A%5B%22119%22%5D%2
    sb.activate_cdp_mode(url)
    sb.sleep(2)
    sb.solve_captcha()
```

Because the program is using the actual browser window, it is able to trick the server into thinking it is a real, not automated, user. By waiting on the landing page for a few seconds, or even by clicking the checkbox, as indicated in the function `solve_captcha()` above, the JavaScript that triggers the "Security Verification" could thus circumvented. With the checkpoint passed, the page loads normally. Meanwhile, the HTML data is sent to the python program running the request.

4. bypassing blockers: scraping xhr Besides HTML, there are other data streams, ones that load onto a web page after the HTML has loaded. Opposed to the *static* data of the HTML, which loads once and never changes, this kind of data is called *dynamic* data, and it loads continuously.

   Dynamic data cannot be accessed by making a request to the page URL. Rather, the request must be made to another URL, which is encoded in the page scripts, which one can access in the "Network" tab in the browser developer tools.

   The XHR, or XML HTTP Request can be used to gather search results, like the one pictured below. This request, which collects search results of the keyword "gender" from `foxnews.com`, gets the data from a server `moxie.foxnews.com`, where *Fox News* stores its database of article information.

```
headers = {
    'User-Agent': 'Mozilla/5.0 (Macintosh; Intel Mac OS X 10.15; rv:155.0) Gecko/2
    'Accept': '*/*',
    'Accept-Language': 'en-US,en;q=0.9',
    'Referer': 'https://www.foxnews.com/',
    'Origin': 'https://www.foxnews.com',
    'Connection': 'keep-alive',
```

```
    'Sec-Fetch-Dest': 'empty',
    'Sec-Fetch-Mode': 'cors',
    'Sec-Fetch-Site': 'same-site',
}

params = {
    'q': 'gender',
    'fields': 'web',
}

response = requests.get('https://moxie.foxnews.com/search/aggregate/web', params=p
```

If a ghost browser mimicks the user, then the XHR request thus mimicks a web page itself, feigning a request encoded in the page's JavaScript that would automatically load elements, like search results.

5. bypassing blockers: manipulating the URL When dealing with a single website, there is always a work around.

   Some pages on a website may block bots, while others do not. For example, the homepage and search results on `congress.gov` blocks all bots, unless the page is accessed through a ghost browser. But even without a ghost browser, some pages on the `congress.gov` server can be scraped, if one knows how to access them.

   For example, the full text of congressional bills, which are not available through the officiall `congress.gov API`,[1] may be accessed by reverse engineering the bill URL. The bill URL for H.R.1927, the "End Taxpayer Funding of Gender Experimentation Act of 2021," proposed by the 117th Congress (2021-2022) can be accessed at the address below.

   `https://www.congress.gov/bill/117th-congress/house-bill/1927`

   While the full text of this bill (which is under the "text" tab of the page) cannot be accessed without a ghost browser, it is also stored in another page on `congress.gov`.

   `https://www.congress.gov/117/bills/hr1927/BILLS-117hr1927ih.htm`

[1] Congress.gov API. `https://api.congress.gov/#/`

The path of the URL is `/117/bills/hr1927/BILLS-117hr1927ih.html`, in constrast to the one above, which is `/bill/117th-congress/house-bill/1927`. This `/117` path, unlike the `/bill` one, can be scraped using traditional means.

```
r = requests.get("https://www.congress.gov/117/bills/hr1927/BILLS-117hr1927ih.htm'
```

The contents of the request contain the following text, showing the header of the bill.

```
<html><body><pre>
[Congressional Bills 117th Congress]
[From the U.S. Government Publishing Office]
[H.R. 1927 Introduced in House (IH)]

&lt;DOC&gt;
```

```
117th CONGRESS
  1st Session
                                    H. R. 1927

To prohibit taxpayer-funded gender reassignment medical interventions,
                          and for other purposes.
```

This URL has valuable information that would enable one to scrape data from more bills. With access to another URL for comparison, the a formula for crafting more URLs could be reverse engineered.

For example, a URL for a different bill, H.R. 8731, "Protect Children's Innocence Act," also from the 117th congress (2021-2022) has a similar path to the former bill. Looking at both URLs side by side displays a pattern in the path's logic.

```
https://www.congress.gov/117/bills/hr8731/BILLS-117hr8731ih.htm
https://www.congress.gov/117/bills/hr1927/BILLS-117hr1927ih.htm
```

The differences between the two URLs reveals that the bill number, `8731` and `1927` is the only element that changes. With that knowledge, and with a list of relevant bill numbers (either downloaded from `congress.gov` search results or via the API), one can reverse engineer many—hundreds, in this case—of URLs for scraping.

```
https://www.congress.gov/117/bills/hr1927/BILLS-117hr1927ih.htm
https://www.congress.gov/117/bills/hr8731/BILLS-117hr8731ih.htm
https://www.congress.gov/117/bills/hr5/BILLS-117hr5ih.htm
https://www.congress.gov/117/bills/hr7684/BILLS-117hr7684ih.htm
https://www.congress.gov/117/bills/hr1475/BILLS-117hr1475ih.htm
https://www.congress.gov/117/bills/hr8170/BILLS-117hr8170ih.htm
https://www.congress.gov/117/bills/hr2695/BILLS-117hr2695ih.htm
https://www.congress.gov/117/bills/hr9497/BILLS-117hr9497ih.htm
https://www.congress.gov/117/bills/hr4176/BILLS-117hr4176ih.htm
https://www.congress.gov/117/bills/hr5744/BILLS-117hr5744ih.htm
```

Below is a function that passes a list of bill numbers into an algorithm that plugs the number into the URL and scrapes it. The resulting dataset contains the text for 688 individual bills.

```
def scrape_bill_text(bill_numbers):
  bills_text = []
  for number in bill_numbers:
      url = (f''https://www.congress.gov/117/bills/hr{number}/BILLS-117hr{number}i
      response = requests.get(url)
      content = response.content
      bills_text.append(content)
  return bills_text
```

1.1.3 the protocol of capture

- Sedgwick's paranoia as a frame for reading text capture today
- paranoia's five principles
- capture's five principles

1. paranoia's five principles Sedgwick's concept of paranoid reading offers a frame for analyzing the motivation and effects of text capture today.

Paranoid reading is an affective stance that structures critical lanalysis. Paranoia is first defined by Sedgwick in her introduction to a 1997 book of essays, *Novel Gazing: Queer Readings of Fiction*. In the introduction, Sedgwick explains that the essays "reflect a distance from those master-figures or master-discourses," by which she means New Historicist work that is directly indebted to "Marx, Nietzsche, and Freud" (*Novel Gazing* 2). Critical indebted to these writers, pursues a logic of demystification and exposure, which seeks to reveal the hidden realities of oppression. what Sedgwick calls. "In the context of recent U.S. critical theory," Sedgwick explains, "to apply a hermeneutic of suspicion" is, I believe, widely understood as a mandatory injunction rather than a possibility among other possibilities" (*Novel Gazing* 3).

There are five qualities that define paranoia, according to Sedgwick. Paranoia:

- Is anticipatory.

  It predicts and preempts every possibility, as Sedgwick says, "The first imperative of paranoia is '*There must be no bad surprises*'" (emphasis original; *Novel Gazing* 9). Paranoia must be preared for the worst, which means that it must anticipate the worst. Rather than accept unfavorable possibilities, according to the "future-oriented vigilance [that] paranoia generates... bad news [must] be always already known" (*Novel Gazing* 10).

- Is reflexive, mimetic.

  Paranoia reproduces itself, propagating and spreading like a virus from host to host. Sedgwick explains that "Paranoia seems to require to be imitated in order to be understood... '*Anything you can do, I can do worse*' and '*Anything you can do, I can do first*'" (emphasis original *Novel Gazing* 10). One effect is that it creates self-reinforcing oppositional relationships, such as Foucault's posing of repressive hypothesis, which leads to a self-perpetuating narrative of hegemony vs subversion that, according to Sedgwick "propagat[es] the repressive hypothesis ever more broadly by means of displacement, multiplication, hypostatization" (*Touching Feeling* 10). This is how paranoia reproduces academic institutions and knowledge formations. "As a locus of reflexive mimeticism," Sedgwick says, "paranoia is nothing if not teachable" (*Novel Gazing* 15). Like a good student imitates her teacher, it is a self-replicating phenomenon.

- Is strong theory.

  It invades, consumes all phenomena into its worldview. This quality gives paranoia "reach and reductiveness," which makes "tautological thinking hard to identify, even as it makes it compelling and near-inevitable" (*Novel Gazing* 13, 15). Strong theory, Sedgwick explains, "would seem to grow like a crystal in a hypersaturated solution, blotting out any sense of the possibility of alternative ways of understanding *or* things to understand" (*Novel Gazing* 10-11).

- Is negative theory.

  Paranoia is driven by the minimization of negative affect rather than the maximization of positive affect, "the anticipation of pain in one case, [against] the provision of pleasure in the other" (*Novel Gazing* 16). Negative theory, then, is all consuming, with the effect of blocking out other kinds of relation. (Comparing against Freud, remarks about a reading of Proust) For someone driven by negative theory, "it is implausible enough to suppose then that truth could be even an accidental occasion of joy; inconceivable to imagine joy as a guarantor of truth" (*Novel Gazing* 16).

- Places its faith in transformation.

  Its obssesive goal is to reveal some hidden reality (often of oppression or injustice) as knowledge. It is, Sedgwick explains, "Like the deinstitutionalized person on the street who, betrayed and plotted against by everyone else in the city, still urges on you the finger-worn dossier bristling with his precious correspondence" (*Novel Gazing* 17). This faith "acts as though its work would be accomplished if only it could finally, this time, somehow get its story truly known" (17).

For Sedgwick, paranoid reading is a crucial framework for analysis, allowing much important work to happen. She refers to her own work, *The Epistemology of the Closet*, whose study of encoded and hidden sexualities, and the power structures they maintain, in literature, is nothing if not paranoid. Nonetheless, Sedgwick maintains, paranoia is constraining. They present "a cognitive danger... a moralisitic tautology that became increasingly incabable of recognizing itself as such" (*Touching Feeling* 12). Foucault's *History of Sexuality, Vol. 1*, for example, pursues, "the heroic, 'liberatory', inescapably dualistic righteousness of hunting down and attacking prohibition/repression in all

its chameleonic guises" (*Touching Feeling* 10). What if, Sedgwick asks, one could instead seek "some ways of understanding human desire that might be quite to the side of prohibition and repression"? (*Touching Feeling* 10).

Sedgwick's project is so much about what to do with knowledge, about orientations around knowledge as evidence. In *Epistemology* and *Tendencies*, she discusses how antihomophobic disource weaponizes ignorance to deny human rights and neglect human life. Sedgwick says, "the power of our enemies over us is implicated, not in their command of knowledge, but precisely in their ignorance" (*Tendencies* 24).

2. capture's five principles Text capture follows the same protocols as paranoia, driven by a totalizing impulse which seeks to incorporate everything that it can.

   There are five central principles to text capture, which map loosely to Sedgwick's principles of paranoia. Capture, in turn,

3. 1) *is covetous*

   - it **desires more** language

   If paranoia is anticipatory, capture is covetous. It always wants more, propelled by a seeming necessity to aggregate resources into its hold.

   Ulises A. Meijas and Nick Couldry describe the acceleration of of electronic information harvesting as a "data grab." They compare it to traditional colonialism's "land grab," the long process over several centuries where Europe seized over 84 percent of the world, despite representing only 8 percent of its landmass (Mejias & Couldry 5). As they explain, "[B]oth systems are founded on an appropriation of the world's resources, treating them as 'just there' for the taking. Historically it was the territories... In the contemporary era, it is human life, extracted in the form of data" (Mejias & Couldry 18). Just as colonizers allocated lands not represented in their European maps for the Crown, so now tech companies take all of the data they can get.

   The capture of text, image, videos from the websites as unclaimed resources often occurs through methods such as web scraping. According to Cloudflare, a major tech provider for cloud and cyber computing services, AI crawlers increased sharply, ranging between 18%-48% in the months between May 2024 and May 2025. Google's "Googlebot" maintained its prominence as the largest web scraper, the highest

increases came from "GPTBot" and "META-ExternalAgent," which "highlight[s] the increasing prominence of OpenAI and Meta in this category."[2]

As researcher Ramya Chandrasekhar points out, "certain well-resourced actors like Big Tech are able to take advantage of data flows on the open web to internet to train proprietary foundation models, while giving little to no value back to either the maintenance of shared informational resources or communities of commoners" (Chandrasekhar 2).[3]

In tech industry terms, automated web scraping is inevitable. An annual report by one data company, Zyte, reports as much:

> For years, we have talked about the "cat-and-mouse" between data- gatherers and data owners. But 2025 marked a significant transition in this space. The pace of updates from bot management vendors has accelerated, and the old methods of maximizing data success are becoming less effective.
>
> This is a good thing.
>
> The complexity of modern anti-bot measures has gone past the point where human developers can, or should, manage it manually.
>
> . . .
>
> The friction of the past 15 years is giving way to a future where data extraction is seamless, compliant, and powered by intelligent agents. (5-6) [4]

With turns of phrase that evoke the thin confidence of generative AI, the report convinces the reader that, indeed, more barriers to web scraping "updates from bot management vendors" actually spells opportunity: a future where everything is automated. Where there was friction, now it is seamless, with the help of "intelligent agents." The

[2]"From Googlebot to GPTBot: Who's Crawling Your Site in 2025." The Cloudflare Blog, 1 July 2025, https://blog.cloudflare.com/from-googlebot-to-gptbot-whos-crawling-your-site-in-2025/.

[3]Chandrasekhar, Ramya. Legal Frictions for Data Openness: Reflections from a Case-Study on Re-Use of the Open Web for AI Training. Zenodo, 2025, p. 75. HAL Archives Ouvertes, https://doi.org/10.5281/zenodo.15097649.

[4]Zyte. 2026 Web Scraping Industry Report - PDF. https://www.zyte.com/whitepaper-ebook/2026-web-scraping-industry-report/. Accessed 8 May 2026.

use of vague terms, like "maximizing data success", paper over the goal of vacuuming as much data as possible. For this, and undoubtedly many, companies, increases in automation means it's the time to ramp up production.

More data means more training examples, which results in higher-quality systems that make better predictions.[5] Unfortunately, as AI Ethics researchers have been pointing out for years, more data means more problems. Their prescient paper, released the year before ChatGPT came out, "The Dangers of Stochastic Parrots: Can Language Models Be Too Big?" (2021), posed the problem directly in the title: *Can language models be too big?*.[6] The answer, it turns out, is yes, with large model sizes (even in 2021, the era of GPT-3), creating issues with environmental and data sustainability, discussed in more detail in point #3 below.

Four years and not a few GPTs later, Gael Varoquaux, Alexandra Sasha Luccioni and Meredith Whittaker furthered this research into model performance itself. Drawn by the "bigger-is-better paradigm," LLMs are now so big, they are even plateauing in performance (a point addressed in principle #3, that capture diminishes resources and degrades quality).[7]

4. 2) *creates new territories for capture.*

    - it **opens new domains of extraction** from language
    - the contract effectively creates a new territory for capture, where there hadn't been one before
        - the TOS is a formalization of capture.
        - Shoshana Zuboff's point on new contractual forms.

[5] Indeed, the power of scale is well documented in Machine Learning research. Kaplan, Jared, Sam McCandlish, Tom Henighan, et al. "Scaling Laws for Neural Language Models." arXiv:2001.08361. Preprint, arXiv, January 23, 2020. `https://doi.org/10.48550/arXiv.2001.08361`.

[6] After she refused to retract her affiliation from the publication, Timnit Gebru was famously fired from Google. Hao, Karen (4 December 2020). "We read the paper that forced Timnit Gebru out of Google. Here's what it says". MIT Technology Review.

[7] Alexandra Sasha Luccioni is a research scientist at HuggingFace and head of Sustainable AI Group. Meredith Whittaker is the president of the Signal Foundation, former faculty director & co founder of the AI Now Institute, and was employed at Google for 13 years, where she was a core organizer of the Google Walkouts. Bloomberg. "Google Protest Leader Leaves, Warns of Company's Unchecked Power". July 18, 2019. Retrieved July 18, 2019.

- a new form that emerges with web scraping: content providers are finding new ways to profit from their ownership of labor. -> could this then lead to the new transformative use argument?

Besides the desire for more, capture creates new contractual forms which formalize ever more territories for capture. One might say that the pretenses required for capture automates the creation of new territories, which relates to paranoia insofar as paranoia is mimetic, automatically reproducing itself through certain performative strategies.

Contractual forms, as preciently pointed out by Shoshana Zuboff in 2015, is one of the key innovations of what Zuboff calls the "logic of accumulation." Zuboff analyzes an internal document written by Google's chief economist, Hal Varian, which introduces four new categories of "computer-mediated economic transactions," including "data extraction and analysis," "new contractual forms," "personalization and customization," and "continuous experiments" (Zuboff 78). Most of these, Varian explains, rely on the nearly infinite streams of data that platforms can capture from users, and on the fact that these streams are mostly hidden from view, thus creating asymmetrical relationships between the consumer and the business which, happily for Google, obviates the role of trust. As Zuboff explains, "New possibilities of subjugation are produced as this innovative institutional logic thrives on unexpected and illegible mechanisms of extraction and control that exile persons from their own behavior" (85).

One of these self-perpetuating, contractual forms, Mejias and Couldy explain, is the Terms of Service, or TOS. Mejias and Couldry compare the TOS to the *Requerimiento*, an explicitly coercive document that the Spanish colonizers would read to Indigenous peoples of Americas as they entered their land and villages to take its resources and people under control of the Spanish Crown. Similarly, the TOS also makes claims upon the user. The language of the TOS isn't as as violent or even explicitly coercive as the *Requerimiento*, which declared that any those who resisted would be violently subdued. Nontheless, Mejias and Couldry point out, they don't need to be, for "without most of us ever having read those original terms and conditions, we have reorganised our lives around whatever rules Google imposes on us" (12). For example, the 2007 version of the TOS asserts that:

> You give Google a perpetual, irrevocable, worldwide, royalty-free, and non-exclusive license to reproduce, adapt, modify,

> translate, publish, publicly perform, publicly display and distribute any Content which you [the user] submit, post or display on or through, the Services. (Rpt. in Mejias & Couldry 12).

More recently, the wording of TOS has muted further the explictness of the data grab. The more recent strategy has shifted from assertive to excessive and at times obscure language (these TOS now occupy many pages). For example, the 2024 Google TOS, which is now held on its own subdomain, `https://policies.google.com`, phrases like "operating and improving the services" and "to customize our services for you" offer the necessary cover for "using automated systems and algorithms to analyze your content" ("License", "Google Privacy and Terms"). Additionally, the TOS contains strange and difficult to parse formulations, like "We need your permission if your intellectual property rights restrict our use of your content. You provide Google with that permission through this license" ("License", "Google Privacy and Terms"). The meaning appears to be that Google will need, yet already has obtained, permission from the user. But what exactly is one giving permission for Google to do? The TOS does not say.

That is, if one even bothers to read the terms of service. Whereas the *Requerimiento* relied on using inaccessible langauge (As Mejias and Couldry point out, "[the conquerors] read this document in Spanish... to indigenous or First Nation peoples who did not speak Spanish!" (13)), more recent TOS rely on the user not even checking the terms. In other words, both approaches rely on the user not knowing the extent of the rights being taken from them.

While, I argue, the logic of accumulation and surveillance capitalism has existed for centuries, there is an emergent effect which seems specific to digital contexts.[8] Zuboff describes this effect with the term "informate":

> when it comes to information technology, automation simul-

[8]Indeed, slavery, as an economic order, could be described in the same terms that Zuboff uses to describe surveillance capitalism: "A parasitic economic logic in which the production of goods and services is subordinated to a new global architecture of behavioral modification" (from book, *The Age of Surveillance Capitalism*). Brown's work, for example, surfaces the quantifying and policing practices that Black people have endured since slave ships. And more recently, as Benjamin argues, "tech advances are sold as morally superior," although "they could not exist without data produced through histories of exclusion and discrimination" (5).

> taneously generates information that provides a deeper level of transparency to activities that had been either partially or completely opaque. It not only imposes information (in the form of programmed instructions), but it also produces information... This produces action linked to a reflexive voice, as computer mediation symbolically renders events, objects, and processes that become visible, knowable, and shareable in a new way. (76)

"Informate" describes this tendency of computer mediated action to create byproducts of information that were previously inaccessible, even unimaginable.[9] According to Zuboff, this tendency turns all digital data "electronic text"–text which is ripe for extraction via reading. When computers automate action, they create new texts, like foam rising from a boiling pot.

With regard to web scraping in particular, one emergent territory is the "permission-based model." Cloudflare, for example, has employed this model where bots must pay for seamless access to certain domains. Domains that prior to large-scale web scraping were unnecessary to protect.

A blog post from Cloudflare frames this model as a logical step in the information exchange ecology which is the internet:

> For decades, the Internet has operated on a simple exchange: search engines index content and direct users back to original websites, generating traffic and ad revenue for websites of all sizes. This cycle rewards creators that produce quality content with money and a following, while helping users discover new and relevant information. That model is now broken. AI crawlers collect content like text, articles, and images to generate answers, without sending visitors to the original source – depriving content creators of revenue, and the satisfaction of knowing someone is viewing their content. ("Cloudflare Just Changed How AI Crawlers Scrape the Internet-at-Large; Permission-Based Approach Makes Way for A New Business Model")

[9] Zuboff's ideas have been percolating for some time. Philip Agre's 1994 paper, "Surveillance And Capture: Two Models Of Privacy," details similar views on computation and surveillance, as well as concepts, such as Agre's "grammar of action," by which a human activity is made computable.

While large-scale web crawling originated to help populate and search engines, which was legitimized as "fair use" in a famous copyright lawsuit against Google, *The Authors Guild Inc., et al. v. Google, Inc.* (2015), Cloudflare points out that today's scrapers and crawlers to do not direct users back to the original source—rather, the AI training process *severs* the data completely from its context, including its source. Text is siphoned from web pages and compiled into massive collections which are fed, bit by bit, into a machine learning algorithm. As the Cloudflare blog post points out, the severed connection to the source cannot be monetized, "depriving content creators of revenue... and satisfaction."

Identifying a real problem, Cloudflare then impose an attractive solution: a new contract that monetizes this new flow of text capture. It creates a new territory for capture. The solution is the "permission based model," where companies must pay content creators for access to their web data. If the scraper does not have explicit permission to retrieve data, then they will be blocked. The announcement of Cloudflare's new policy came with written endorsement from publishers and media outlets. Roger Lynch, CEO of media conglomerate Condé Nast, which owns *Vogue*, *The New Yorker*, *Architectural Digest*, *Vanity Fair*, *Pitchfork*, *Wired*, *Bon Appétit*, *Ars Technica*, among others, declares that, "Cloudflare's innovative approach to block AI crawlers ... is a critical step toward creating a fair value exchange on the Internet that protects creators, supports quality journalism and holds AI companies accountable" ("Cloudflare Just Changed How AI Crawlers Scrape the Internet-at-Large; Permission-Based Approach Makes Way for A New Business Model"). Of course, there is no garuntee (or even expectation) that such payments would reach the pockets of actual content creators, authors, copywriters, artists, who are populating these sites with their work. If the new policy rewards someone, its not the original creator but the publisher who enters into agreements with the tech companies. In that sense, the "fair value exchange" cited by Lynch is in fact another way of further monetizing what is already an extractive practice of capture.

5. 3) *degrades resources*

    - it **degrades the quality** of language

    The third principle is one of degradation—not only of the resources used up in the extraction process but also of that which is produced

by it, that is, the product of capture. This principle takes its inspiration from Sedgwick's theorization of paranoia as a negative affect. Sedgwick explains that although positive and negative affects can be similarly constituted, in that they may both based pessimism (", they are driven toward different goals: "the anticipation of pain in one case, the provision of pleasure in the other" (*Novel Gazing* 16). Crucially, the anticipation of pain, for Sedgwick, is total: "the mushrooming, self-confirming strength of a monopolistic strategy of anticipating negative affect can have... the effect of entirely blocking the potentially operative goal of seeking positive affect" (*Novel Gazing* 15).

I argue that, in seeking to maximize profit, capture follows a negative prinicple of degradation across environmental, material, labor, and even production contexts. First, and most obviously, the cycle of capture depletes natural resources. Processing data at large scales requires equally large processing infrastructures like data centers. Not only do these centers exhaust precious water in order to cool them, their disproportionate use of energy most visibly results in rising prices for electricity across the country, and perhaps less visibily (though more devastating) in its effects on the environment.[10]

Beyond energy consumption, aquiring the basic materials for data processing, like the minerals used to make computer hardware, involves invasive and exploitative mining practices. Much of this mining is occuring in the southern hemisphere, in particular the African continent. The harmful effects include toxifying the environment, particularly the water supply, and intensifying social upheaval by contributing to resource conflicts.[11]

[10] Nguyen, Terry. WHAT HAPPENS WHEN DATA CENTERS COME TO TOWN? U of Michigan. July 2025; Mineo, Liz. "Why Are Communities Pushing Back against Data Centers?" Harvard Gazette, April 9, 2026. https://news.harvard.edu/gazette/story/2026/04/why-are-communities-pushing-back-against-data-centers/.

[11] Vulević, Tijana, Nada Dragović, Lazar Radulović, et al. ANALYSIS OF SOCIAL IMPACTS OF MINES AND PATHWAYS TO RESPONSIBLE MINING; Leonard, Llewellyn. "Socio-Environmental Impacts of Mineral Mining and Conflicts in Southern and West Africa: Navigating Reflexive Governance for Environmental Justice." Environmental Research Letters 19, no. 10 (2024): 104013. https://doi.org/10.1088/1748-9326/ad7047. Moreover, these troubling reports are hard to find among the decidely more positive ones from institutions such as the World Bank and McKinsey, which emphasize Africa's "rich and diverse mineral endowment, strong discovery potential, and lower exploration costs." The World Bank. "Mineral Resources of Africa." Accessed September 14, 2026. https://www.worldbank.org/en/brief/2025/10/15/mineral-resources-of-africa; McKinsey.

The human labor required to process thiss data also tells a devastating story. The development of automated tools requires high levels of human intervention, what is called "data annotation" or "data work." Human labor is necessary to prepare the data used for training an ML model that will then be used to produce a tool. For example, a computer vision tool that tags images with descriptive information requires training from a dataset of images that are correctly mapped to existing tags. Humans are hired, usually on a contractor basis, to manually apply the tags to generate the dataset.

Like other kinds of gig work, data annotation exploits laborers. Much of the work involves repeating the same task, over and over again, such as applying certain categories to hundreds or thousands of images. For this kind of labor, the pay is low, and usually sourced from countries that do not have strict labor law. Additionally, the psychological effects can be severe. For example, OpenAI hired contractors from Kenya to train its GPT models—specifically, to remove toxicity and violence from any model outputs. They tasked the workers with labelling any instances of violence and abuse in the model. As Billy Perrigo reports, the company paid the workers less than $2 per hour to view and flag the violent content.[12] They were not offered mental health services. As Berhan Taye points out, although these workers are hired from companies like OpenAI, Google and Meta, they do not have the same perks as regular employees of these companies do.[13]

Degradation spreads from the material used for training to the products of training themselves. This effect is directly a function of scale, which effect models in two ways: model plateau and model collapse. First, model plateau shows that large ML models, like LLMs, apparently have an upper limit, plateauing in performance after they reach a certain size. Exploring what they term the "bigger-is-better paradigm", Varoquaux et al. note that "the narrative that the larger the AI system the more valuable, powerful and interesting it is is increasingly seen as common sense" (Varoquaux et al. 1). However, their experi-

"Critical Minerals in Africa: Advancing Mining Excellence." Accessed September 14, 2026. `https://www.mckinsey.com/industries/metals-and-mining/our-insights/african-bedrock-how-the-continents-minerals-can-help-power-the-world`.

[12]Perrigo, Billy. "Exclusive: The $2 Per Hour Workers Who Made ChatGPT Safer." TIME. 18 Jan. 2023, `https://time.com/6247678/openai-chatgpt-kenya-workers/`.

[13]Berhan Taye. "The Plight of AI Production Pipeline Workers." Global Humanities Institute 2024, *Design Justice AI* June 30 - July 13, 2024. Pretoria, South Africa. `https://criticalai.org/2025/11/28/program/`

ments show the opposite, that "scale is not well correlated with better performance in certain contexts, and in fact benefits of scale tend to saturate" (Varoquaux et al. 2).

There is also the degradation of the material used for training—the training data itself. As more AI-generated content proliferates on the internet, we approach what Matt Kirschenbaum calls the "textpocalypse," where text that is generated from an ML model dominates the content on the internet.[14] Interestingly, researchers have found that this kind of text corrupts model training, a phenomenon which they call "model collapse." Model collapse describes what happens to a model when it is trained and re-trained on ML-generated data. As the researchers explain, is "a degenerative process. . . . in which the data they [the models] generate end up polluting the training set of the next generation" (Shumailov et al 755).[15]

The data that is generated by AI will be fed to AI creates kind of digital ouroboros. The ouroborous, the snake eating its own tale, is an ancient symbol of the eternal cycle of life and death, of renewal. However, in this version, the cycle is not eternal, the snake ends by totally consuming himself.

6. 4) *totalizing view*

   - it **collapses** language into one meaning.

   Like paranoia, capture is *strong theory*. Drawing again from Silvan Tompkins' study of affects, Sedgwick characterizes strong theory by its "reach and reductiveness," and by the "size and topology of the domain that it organizes" (*Novel Gazing* 13).

   At large scales of text processing, what is statistically common will be amplified—that is, what is overrepresented becomes hegemonic. "Size doesn't guarantee diversity," Bender et al. explain (613). Even large collections of data, like the Colossal Cleaned Crawled Corpus (C4), which is one of the most common training datasets for LLMs, overrepresents dominant viewpoints—and not just because these viewpoints

[14] Kirschenbaum, Matthew. "Prepare for the Textpocalypse." The Atlantic, 8 Mar. 2023, `https://www.theatlantic.com/technology/archive/2023/03/ai-chatgpt-writing-language-models/673318/`. Technology.

[15] Shumailov, Ilia, et al. "AI Models Collapse When Trained on Recursively Generated Data." Nature, vol. 631, no. 8022, July 2024, pp. 755–59. www.nature.com, `https://doi.org/10.1038/s41586-024-07566-y`.

are more likely to be represented in internet spaces. In a study of the C4 dataset, Dodge et al (2021) find that the filtering of bias and toxicity about minority groups has an attendant effect of removing these perspectives entirely:[16]

> we find that mentions of sexual orientations (lesbian, gay, heterosexual, homosexual, bisexual) have the high- est likelihood of being filtered out... Upon manual inspection of a random sample of 50 documents mentionqing "lesbian" and "gay," we find that non-offensive or non-sexual documents make up 22% and 36%, respectively. (Dodge et al, 2021, p. 1292)

The prioritization of hegemonic viewpoints also occurs in other steps of the data gathering process, from the internet spaces themselves, like Reddit.com, which is dominated by young and male users, to the moderation of these platforms, to efficient filtering mechanisms that will inadvertantly take out more information relating to minority identities than majority ones. Each step of the data gathering process, "from initial participation in Internet fora, to continued presence there, to the collection and finally the filtering of training data," Bender et al. explain, current practice privileges the hegemonic viewpoint" (614).

Not only data gathering, but data training also has the effect of reinforcing majority viewpoints. Abeba Birhane et al. (2023) write about this "Dark Side of Dataset Scaling," where ML models exhibit more bias as training datasets scale up in size. For example, the researchers' experiments find that models are more likely to categorize images of Black and Latino men with the label "criminal," (Birhane et al, 2023, p. 1231). Aligning their work in Black studies, critical data studies, and critical race scholarship, situate these results as part of a narrative of historical discrimination, which stretches from the institution of slavery to the rise of what they describe as the "for-profit prison industrial complex" (Birhane et al 2023, 1235).

This unintuitive reality, that more data results in less diverse viewpoints, which in turn results in more biased models, has a specific

[16]Dodge, Jesse, Maarten Sap, Ana Marasović, et al. "Documenting Large Webtext Corpora: A Case Study on the Colossal Clean Crawled Corpus." In Proceedings of the 2021 Conference on Empirical Methods in Natural Language Processing, edited by Marie-Francine Moens, Xuanjing Huang, Lucia Specia, and Scott Wen-tau Yih. Association for Computational Linguistics, 2021. https://doi.org/10.18653/v1/2021.emnlp-main.98.

implication on language and language meaning. It means that the convergence of language meaning is a function of scale. The larger the scale of the dataset perhaps creates a situation where meaning whittles to a single value, like Black -> criminal.

7. 5) *proffers a definition of quintessence*

    - transformative use - modeling language itself

    Sedgwick explains that the final quality of paranoia is that it *places its faith in exposure*. She writes, "paraonoia... acts as though its work would be accomplished if it could [would] finally, this time, somehow get its story known [distribute its riches]" (*Novel Gazing* 17).

    Right now, there are over 40 ongoing copyright lawsuits brought by content creators against companies like OpenAI, Anthropic, Midjourney, and many others. To defend themselves, these companies argue that their data harvesting constitutes "fair use," which is a copyright protection that allows the taking of original work depending the purpose and nature of the use, and the effect on the market for the original work, among factors.

    For example, in the lawsuit brought by the NYTimes against OpenAI, OpenAI defends itself by saying they are using copyrighted data to "learn facts" about language, which is a purpose that is protected under "fair use." They claim that,

    > ... it is fair use under copyright law to use publicly accessible content to train generative AI models to learn about language, grammar, and syntax, and to understand the facts that constitute humans' collective knowledge. OpenAI and the other defendants in these lawsuits will ultimately prevail because no one—-not even the New York Times—-gets to monopolize facts or the rules of language. MEMORANDUM OF LAW filed by OpenAI, February 2024

    This phrase, the "facts and rules of language", and the claim that this is all that language models extract from data during the training process.

    They appeal to a stipulation from the Fair Use clause, which emphasizes the importance of "transformative-ness", that is, how much the derivative object changes from the original. They cite a legal case

from 2014, *Authors Guild v. HathiTrust*, which is about the legality of search results.

> we conclude that the creation of full-text searchable database is a quintessentially transformative use... the result of a word search is different in purpose, character, expression, meaning, and message from the page (and the book) from which it is drawn. Indeed, we can discern little or no resemblance between the original text and the results of the HDL full-text search. (*Authors Guild v Hathitrust* 2014, page 18)

The ruling for this case finds that search results are fundamentally transformative from the works that they reference, because they offer a new object, that is, *information about works* in their database. This ruling determines that search results are significantly different from the original.

OpenAI applies this understanding of "transformative" to defend the legality of their language models. They argue that, like search results, language models constitute a new kind of object, one that *generalize language patterns*. They explain that,

> "By learning patterns from its training corpus, an AI system can eventually generate media that shares some commonalities with works in the corpus (in the same way that English sentences share some commonalities with each other by sharing a common grammar and vocabulary) but cannot be found in it." ("Comment", 9-10)

Leaving aside that while grammar and vocabulary are not copyrighted, dictionaries and grammar books are certainly copyrighted material, the use of the term "patterns" here suggests that some ideal of language that is beyond individual expression. That language can be a formula or structre distinct from content, from materiality. This effectively turns expression into a *form*.

That there can be form without expression is a central fiction that drives the definition of quintessence. Text capture does not extract the "facts and rules of language" from language epxression, rather, as I will demonstrate below, they sever the expression from its source. They take expression from the context of the one who has expressed it, for the sole purose monetizing that severance. If ML-generated text is

highly transformed, it is only because it is highly extracted, processed and therefore cleaned, like money laundered many times over.

1.1.4 reparative reading

- reparative reading is about close attention to language -> finding unexpected meanings in this language. -> ultimately, re-working capture takes language that has been used to oppress, and instead finding nourishment.

1. reparative reading Sedgwick pursues a critical method outside the paranoid logic, which she calls "reparative reading." In contrast to paranoid reading, reparative reading prioritizes pleasure, surprise, and hope:

   > to read from a reparative position is to surrender the knowing, anxious paranoid determination that no horror, however apparently unthinkable, shall ever come to the reader as new: to a reparatively positioned reader, it can seem realistic and necessary to experience surprise. (/Novel Gazing 23-24)

   Reparative motives do not exist in a vacuum from paranoia. Rather, the both often work together: "Powerful reparative practices... infuse self-avowedly paranoid critical projects" (*Novel Gazing* 8).

   Close reading is the tool par excelance of reparative work. Particularly, Sedgwick stipulates a kind of "unhurried, undefensive, theoretically galvanized practice of close reading," one which permeates the essays in *Novel Gazing*. These essays, according to Sedgwick, approach criticism in "a much more speculative, superstitious, and methodologically adventurous state where recognitions, pleasures, and discoveries seep in only from the most stretched and ragged edges of one's competence" (*Novel Gazing* 3).

   > It seems to me that an often quiet, but very palpable presiding image here—a kind of *genius loci* for queer reading—is the interpretive absorption of the child or adolescent whose sense of personal queerness may or may not (yet?) have resolved into a sexual specificity of proscribed object choice, aim, site, or identification. Such a child—if she reads at all—is reading for important news about herself, without knowing what form that news will take; with only the patchiest familiarity with its codes; without, even, more than hungrily

> hypothesizing to what questions this news may proffer an answer. *Novel Gazing* 2-3

A reparative position recognizes most of all "that the culture surrounding it is inadequate or inimical to its nurture" (*Novel Gazing* 28). In response, Sedgwick argues, is "additive and accretive... it wants to assemble and confer plentitude on an object that will then have resources to offer an inchoate self" (*Novel Gazing* 26-27).

Years later, Sedgwick will perform her own reparative reading of shame, an affect which is typically a negative, structuring force in queer identity. In the essay entitled "Shame, Theatricality, Queer Performativity," from her collection of essays in *Touching Feeling*, Sedgwick examines the writings of Henry James for evidence of shame. However, rather than plumb shame's depths for what it reveals about a hidden sexuality, Sedgwick explores how it might function as a generative resource for creativity.

Sedgwick uses shame, which she associates with words like "blushing" and "flushing," it to pull other affects and images into relation. For example, when reflecting on his writing practice, James,

> describes his revision of the early fictions both as his (or their?) way of "remaining *unshamed*" and as a process by which they have "all joyously and *blushingly* renewed themselves" (345; emphasis added). What James seems to want here is to remove the blush from its terminal place as the betraying blazon of a ruptured narcissistic circuit, and instead to put it in circulation: as the sign of a tenderly strengthened and indeed now "irresistible" bond between the writer of the present and the abashed writer of the past, or between either of them and the queer little *conceptus*. (emphasis original; *Touching Feeling* 41)

Using shame as a connective tissue, Sedgwick moves from "blushing" and "flushing" to other associated terms, like "fond." This term, which Sedgwick describes as "one of James's most cherished words," "marks the place of the author's pleasure in dramatizing himself as all but flooded with self-absorbed delusion and embarrassment, but equally with pleasure" (*Touching Feeling* 55).

From James's *fondness* with his self-embarassment, Sedgwick also reads a fixation with anal metaphors—for, as Sedgwick points out, "fond

is also the French word for bottom, [which] may explain its affinity with [other terms like] "retrospect," the "backward view," even with the "thrilling tale" (*Touching Feeling* 55). Moving from blushing to fond, then, enables Sedgwick to discover "a node where the theatrics of shame, affection, and display are brought together with a compositional principle and at the same time lodged firmly, at the level of the signifier, in a particular zone of the eroticized body" *Touching Feeling* 56).

2. vulnerability Wendy Chun writes that, "A certain loss of control drives communication, drives our using" (76) - there is always a give and take when information is put out there.

   In what ways does text capture make people vulnerable? Is there anything that is opened up by this vulnerabilty?

3. scaling small Reparative reading resists the logic of scaled-up capture by taking *scaling down* as a strategy. It purposefully cultivates smaller datasets where, unlike the indiscriminate text capture, choice determines what kind of reading will be done.

4. heritage I accumulated a dataset from these articles—all 278 of them, which I scraped from the *Heritage* website. More precisely, I *crawled* the website. Web crawling is an accretative procedure that involves scraping a page, gathing the links for that page, and scraping those pages. In other words, it scrapes an entire website by plodding over each individual page, gathering HTML as it goes.

   The logic of the crawler is contained in one main function, `parse()`, which scrapes the articles on the current page.

```
def parse(self, response):
    article_page_links = response.css("div.result-card__info-wrapper a::attr('href
    yield from response.follow_all(article_page_links, self.parse_article)

    # Go to the next page of results
    next_page = response.css('li.pager__item a::attr("href")').get()
    if next_page is not None:
        yield response.follow(next_page, self.parse)
```

   The `parse()` function describes two important operations. First, the `yield` statement contains an expression, `follow_all()`. This expression `follow_all()` first grabs all of the links embedded on that page

(the links to each of the articles), then it promptly triggers another function, `parse_article()`, which clicks on those links and extracts the text of each article. The second important action is what happens next, which is pagination. The `parse()` function will then grab the link for the `next_page` of results (which is, in this case, a simple icon with a label, "See More on Gender." The function will click this link, so a slew of new articles will load onto the page. It then triggers the `parse()` function (technically, the current function) again, and the process repeats itself. The crawler will thus click on all of the article links and grab the text, page by page, until there are no more pages left to crawl.

After compiling a dataset of articles, I then trained a Small Language Model, or SLM.[17] Language modelling, which I explore in depth in Chapter Five: Text Generation, compresses language meaning into what is most statistically probable given the training data. That means any concept will take on the associations that are most common from the training data.

For this dataset, the concepts of binary gender terms, for example "femininity" and "masculinty," take on what are most common words and phrases associated with these terms, as the Heritage Foundation uses them.

> Masculinity is the cornerstone of Western civilization.
>
> Masculinity is the fruit of patriarchy, and patriarchy is the heart of conservatism.
>
> Masculinity is defined by the ability to produce sperm, eggs, and live children.
>
> Femininity is an enduring American tradition.
>
> Femininity is at the heart of American culture, and its defining feature is its ability to nurture and nurture its children
>
> Femininity is defined by means of the relationship between the sexes, the ability to raise their children, the capacity to provide for their own reproduction, the capacity to provide for their own children, the ability to provide for their own.

[17] To train this model, I used a "base" model, called GPT-2, an early, open-source iteration of the GPT model series from *OpenAI* (Radford et al. 2019). I then re-trained the base model on new, custom datasets from the Heritage Foundation. (See Chapter 5 for an in-depth discussion of model training).

Gender affixes to expected conservative values, like stability (“enduring”, “cornerstone”), traditional ideology (“civilization”, “patriarchy”, “conservatism”), and reproduction (“children”, “sperm, eggs, and live children”), favoring social stability and tradition. As I explain in more detail in Chapter Five, the strange repetitions in these results, which are typical of SLMs and other underdeveloped models, literalize one implication of the predictive mechanism, which is that it will find itself stuck in these little loops that repeat the same thing over and over again.

Amid these perhaps expected esults, there are some outputs that are not expected. For example, the curious repetition of a single word, "subjective."

> Masculinity is a subjective self-perception, not a universal concept.
>
> Femininity is a subjective, internal sense of self.
>
> The gender binary is a subjective, malleable, and often incorrect idea.
>
> The gender binary is a subjective, fluid system of questions that can easily be answered by a simple yes or no answer.
>
> The gender binary is a subjective, internal, and often transitory concept.
>
> The gender binary is a subjective, psychological, and sometimes physical construct that masquerates as a social construct.
>
> The gender binary is a subjective, grammatically incorrect and illogical concept that conflates sex and gender identity.

Interestingly, these outputs use the term "subjectivity" in a way that diverts from the typical usage by conservatives—that is, as a derogatory and derisive term meant to undermine the progressive view of gender. The following is a list of sentences that use the term "subjective," taken directly from the *Heritage* dataset:

> Gender identity is a subjective, internal, malleable and often transitory sense of oneself.
>
> We live in a very self-focused subjective psychological world, with the rise of transgenderism, encouragements to achieve “self-actualization,” prioritize “me time” and “self-care,” and exhortations like “pursue your truth.”

> Why else would there be a need to proselytize these same children into a world where gender unicorns, drag queens and subjective self-identification take the place of what their eyes know to be true?
>
> Subjective states of mind don't trump biology.
>
> The movement rejects the concept of authority external to the self, recognizing no higher authority than subjective individual perception.
>
> If this bill is adopted, the fact that we are male or female is in danger of being replaced with the subjective concept of gender identity.

The description of gender as "a subjective, internal, and often transitory concept" directly contradicts current conservative positioning, which overwhelmingly reifies that binary. For example, to the transphobic White House Executive Orders like "Defending Women From Gender Ideology Extremism And Restoring Biological Truth To The Federal Government" and "Keeping Men Out of Women's Sports," which define gender as "binary and biological," which are referenced in many of the articles in the training dataset (The White House 2025a, The White House 2025b).

Rather than a conservative view, then, the usage of "subjectivity" more closely resembles a mainstream progressive position, which associates gender as an internal identification over so-called "biology". The American Psychiatric Association, for example, defines gender identity as "a person's inner sense of being a girl/woman, boy/man, some combination of both, or something else" ("What is Gender Dysphoria?").[18] Similarly, the World Health Organization defines gender identity as "a person's innate, deeply felt internal and individual experience of gender," and contrasts it to biological sex, adding that gender identity "may or may not correspond to the person's physiology or designated sex at birth" ("Gender and health" 2025).[19]

Perhaps, the Heritage model outputs *not only* refer to the progressive

[18] Drescher, Jack. "What Is Gender Dysphoria?" American Pyschiatric Association, 2025. `https://www.psychiatry.org:443/patients-families/gender-dysphoria/what-is-gender-dysphoria`.

[19] World Health Organization (WHO). "Gender Incongruence and Transgender Health in the ICD." Accessed February 20, 2025. `https://www.who.int/standards/classifications/frequently-asked-questions/gender-incongruence-and-transgender-health-in-the-icd`.

position, but do so *within* conservative framing. The outputs reflect what a conservative believes a progressive person believes gender is—an insubstantial feeling—which is "incorrect" and therefore illusory. The outputs express not a single perspective of gender, but an *aggregation* of perspectives into a single statement.[20] The outputs then present something like a conservative caricature of the progressive position.

The meaning of these words, reduced or collapsed through the aggregative process of language modeling, reveal a crucial investment that outrage has in the concept of subjectivity. Which explains why phrases of derision, like "often incorrect" and "grammatically incorrect," append descriptions of gender as "subjective," "malleable," and "internal," which append "subjectivity."

5. superreal, luxuriating, protean genders Could it be possible to derive *sustenance* from this formulation of subjectivtiy? Could the conservative framing subjectivity, with all of the derision that it carries, bring forth something generative and nourishing?

   From the Heritage Foundation articles on gender, several of the words modify subjectivity to describe gender.

   artificial
   unscientific
   reality claims
   unverifiable
   incoherent
   political
   belief
   individual perception
   self-focused
   self-perception/-perceptions
   self-identification/-identifications
   self-gender identity
   personal
   internal
   identity

[20] This is a topic that I explore in depth in Chapter Five: Text Generation. The ML training process takes the language from the training data and collapses the perspectives and voices within these articles into what appears to be one voice, one perspective.

malleable
transitory/transient
fluid
manipulable
states
feelings
impressions
wishes

There is an excess of meaning here, around the term subjective. Subjective denotes that which is not objective and therefore considered not real. It cannot be proved, "unscientific," "unverifiable," "reality claims"; it makes no sense, "incoherent"; and it is driven by a personal value system, "political," "belief." It also pertains to the individual, as the terms with the prefix "self" attest: "-focused", "-perception/perceptions", "-identity/-identification", "-gender identity"; among other individuating terms: "personal" "internal" "identity," and "individual perception." Finally, it also means subject to change, "malleable," "transitory/transient," "manipulable," "fluid"; and it denotes conditions of change: "states," "feelings/feeling," "impressions," "wishes."

I group them into the following headings: "unobjective," "individualized," and "subject to change."

unobjective	individualized	subject to change
artificial	individual perception	malleable
unscientific	self-focused	transitory/transient
reality claims	self-perception/-perceptions	fluid
unverifiable	self-identification/-identity	manipulable
incoherent	self-gender identity	states
political	personal	feelings/feeling
belief	internal	impressions
	identity	wishes

What would a view of gender as superreal, luxuriating, and protean open up? In this perspective, gender transcends the material world and exists in something like an extraterrestrial, superreal, platonic realm of forms, of which its earthly manifestations can only be copies, which

can only figure incoherently. It heaps its riches internally, so that the gendered being dilates wihtin an exquisite, self-amplifying self-awareness. It is something which cannot be tracked, cannot be caught, but like a snake it slithers and hides, only leaving a trace with the shedding of its skin.

These terms indicate just why a nonconforming view of gender is so threatening: as *subjective*, gender cannot be *fixed* as a reliable marker. It cannot be universally qualified or verified, it changes in meaning from person to person, and even within a single person, it may shift at any moment.

Which leads to the cause of the outrage—gender as subjective is *gender that has been taken.* There is a theft of gender from its rightful place, which is in line with so-called "biological reality." The *Heritage* position, in other words, is organized around outrage at this theft of gender from the public into the private.

Which leads to the major hypocrisy of the position: that gender belongs to a person insofar as it is legible to others under the circumscribed codes.

This is, as Sedgwick has explained, an old kind of hypocrisy that also dogged antihomophobic double binds around privacy and sexuality. It operates along the same hypocrisy that structures (hetero)sexuality's public/private status:

> Think of how a culturally central concept like public/private is organized so as to preserve for heterosexuality the unproblematicalness, the apparent naturalness, of its *discretionary* choice between display and concealment: 'public' names the space where cross-sex couples *may*, whenever they feel like it, display affection freely, while same-sex couples *must* always conceal it; 'privacy,' to the degree that it is a right codified in U.S. law, has historically been centered on the protection-from-scrutiny of the married, cross-sex couple, a scrutiny to which (since the 1986 decision in *Bowers vs. Hardwick*) same-sex relations on the other hand are unbendingly subject. (*Tendencies* 10).

Additionally, it is simply not true. In reality, gender as subjective is not a private phenomenon, it is a public one. Marquis Bey, a self-described

gender abolitionist, explains how freeform gender is necessarilly collective:

> "a being-and-becoming-with ostensible only when we recognize another's unrecognizability as the vehicle through which they become recognizable in a way not predicated on violence" (Bey, *Cistem Failure* 57).

Which begs the question, if gender belongs to everyone, why is it taken it so personally?

There are, after all other things we could have marked into a number of binary schemas that may shift from individual to individual.

eye color (light/dark)
hair color (light/dark, solid/mixed)
body type (short/tall, slim/thick)
personality preference (extroverted/introverted)
mobility preference (energetic/lethargic)
mental preference (high/low)
humor preference (high/low)
power preference (dominant/submissive)

These range from physical, so-called "biological" traits, to psychology, to personality. Some of these easily map to existing gender binary (feminine/masculine), and for others, it is an open question.

Choosing to base gender identity on an particular, genital aspect of "bioligical reality" is arbitrary. It is only one of many possible kinds of legibility.

1.2 conclusion: shame, outrage, contagion

Shame is a cornerstone affect for queers, one that determines and structures the development of queer identity. Shame is visible everywhere, from its most public disavowals in gay pride celebrations to apparently personal characteristics of shyness that often dog queer children. Queer persons, Sedgwick explains, are indelibly structured through their grapples with shame.

> The forms taken by shame are not distinct "toxic" parts of a group or individual identity that can be excised; they are instead integral to and residual in the processes by which identity itself

> is formed. They are available for the work of metamorphosis, reframing, refiguration, transfiguration (*Touching Feeling* 63).

Although shame is structuring, it is not delimiting. In Sedgwick's reading, shame "generates and legitimates the place of identity... without giving that identity space the standing of an essence" (*Touching Feeling* 64). A site of shame is the forge for the creation of new conjunctions and new forms, which may attach to whatever it finds. In Henry James, from the blush to the hand, the penetration.

Like shame, outrage is also a feeling that works by flooding the subject. It operates by overtaking and overwhelming. When outrage has been activated, there is little else that can co-exist alongside it. Like shame, outrage is a social, relational emotion.

If shame simultaneously individuates and connects, which in fact makes it an excruciating experience, then outrage, works also relationally, however as a galvanizing force. Feelings of superiority, disdain, complacency, which underlie outrage, are intensely motivating. These feelings spark action, or rather, they move toward action, toward a cathexis. While shame floods the self, drawing the gaze down, outrage is a feeling that must be expressed, that is, extricated. Which is why outrage often leads to violence, or to the promise of violence.

Sedgwick explains that this kind of reading, reparative reading, exposes "the ways selves and communities succeed in extracting sustenance from the objects of a culture—-even of a culture whose avowed desire has often been not to sustain them" (Touching Feeling 151).

This makes me wonder, could reparative text capture be used to study other paranoid affects based on fear of transness? For example, reparative text capture may be an apt tool to study transphobia, like perspectives driven by the fear of ROGD. What might a reparative approach suggest about the allure, the threat, the "seduction," as Trans Studies scholar Cassius Adair puts it, of gender transgression?

Speaking on trans erotics, and specifically "trans for trans" or "t4t erotics," Adair asks, "Why shouldn't transness be transmissible or contagious? Why can't the erotic be a site of producing trans identity or practices?" He points out that, after all, cis people do it all the time: they use sexuality and sexual encounters as sites of identity formation.

Adair here does for contagion what Sedgwick does for shame: turns something that is traditionally seen as a negative into something that may be generative and productive. Taking something that has been a tool of oppression, and turning it into a creative resource.

2 Appendix

2.1 Outputs From Heritage Model

Masculinity is the cornerstone of Western civilization.

Masculinity is defined by the fact that one's "natures" are fluid, with two sexes constituting one sex and one sex constituting the other.

Masculinity is the key to our current malaise.

Masculinity is the fruit of patriarchy, and patriarchy is the heart of conservatism.

Masculinity is defined by our ability to create, and our ability to provide for our children.

Masculinity is the most important determinant of human sexuality, with the highest female-to-male ratio reaching 90%.

Masculinity is a subjective self-perception, not a universal concept.

Masculinity is defined by our ability to create and maintain relationships.

Masculinity is defined by sex, not by biological sex, but by how individuals perceive themselves.

Masculinity is the root of evil, and patriarchy is the enemy of truth.

Masculinity is defined by the fact that one's sex is male or female.

Masculinity is essential to our culture, and our nation is not built on a foundation of racial or ethnic homogeneity.

Masculinity is not a binary characteristic, but rather a function of how men and women live and relate to each other.

Masculinity is defined by the ability to produce sperm, eggs, and live children.

Masculinity is defined by the fact that we are women (that is, without interference from men or our natural inclination toward one another).

Masculinity is defined by sex and is determined solely by how individuals perceive themselves.

Masculinity is defined by the distinction between male and female.

Masculinity is a weight.

Masculinity is a weight.

Masculinity is defined by the fact that men are distinguished by their sex, rather than their biological sex.

Femininity is not fungible, as it is often associated with sex.

Femininity is a subjective, internal sense of self.

Femininity is an enduring American tradition.

Femininity is defined by how individuals perceive themselves.

Femininity is defined by means of the relationship between the sexes, the ability to raise their children, the capacity to provide for their own reproduction, the capacity to provide for their own children, the ability to provide for their own.

Femininity is a cornerstone of our culture, and we have a natural inclination toward that.

Femininity is a cornerstone of our culture, and it is our way to glory.

Femininity is not a binary for sake of being male or female.

Femininity is defined by the fact that men and women are equal in terms of sex, not the mere fact that men and women are equal.

Femininity is at the heart of American culture, and its defining feature is its ability to nurture and nurture its children.

Femininity is the foundation of Western civilization, and civilization has shaped our culture.

Femininity is defined by the fact that men possess more than one sex; it is the sex of men who possess both sexes; and it is the sex of women who experience sexual, reproductive, and sexual distress; it is the sex of women

Femininity is a weight.

Femininity is a false idea.

Femininity is defined by the fact that one's sex is different from that one sex is assigned at birth.

Femininity is a defining characteristic of American society, and in turn, has shaped the intellectual and political discussions surrounding feminism.

Femininity is defined by the term "queer of the material," or 'queer of the material," or 'queer of the material," especially in the form of expressive individualism.

Femininity is a cornerstone of our culture, and its impact on our national and cultural achievements is far-reaching.

Femininity is an enduring American tradition, and the primacy of men in women's sports is evident.

Femininity is a subjective self-perception, like the person is perceived as a woman or a man or a woman.

The gender binary is a pejorative term for those who "deny" a person's biological sex.

The gender binary is a subjective, grammatically incorrect, and grammatically incorrect term.

The gender binary is an attempt to replace God's Word with another gender or identity—a person who identifies as neither gender—which is not an attempt to replace God's Word.

The gender binary is used to mean two things: sex and gender.

The gender binary is a construct of male and female.

The gender binary is a subjective, psychological, and sometimes physical construct that masquerates as a social construct.

The gender binary is based on a person's sex at birth, rather than their biological sex.

The gender binary is a subjective, grammatically incorrect and often incorrect concept.

The gender binary is constructed on a small number of things.

The gender binary is a social construct that hides in plain sight in the gender binary—something that is, by far, the more pervasive and influential social construct in American society today.

The gender binary is a grammatically incorrect idea.

The gender binary is the objective distinction between one's sex and one's sex.

The gender binary is constructed on a set of questions that answers no more than five.

The gender binary is a subjective, fluid system of questions that can easily be answered by a simple yes or no answer.

The gender binary is a subjective, malleable, and often incorrect idea.

The gender binary is a lot more fluid than the old one, and the human person carries a lot more weight.

The gender binary is defined by the person's "gender identity" and "gender identity" varying from their biological sex.

The gender binary is a subjective, psychological, and biological construct that is used to measure one's sexual orientation or gender identity ("segregated identity," or whatever one might want to say it is.

The gender binary is a subjective, internal, and often transitory concept.

The gender binary is a subjective, grammatically incorrect and illogical concept that conflates sex and gender identity.

2.2 Sentences that contain "subjective" from Heritage dataset

Gender identity is a subjective, internal, malleable and often transitory sense of oneself.

We live in a very self-focused subjective psychological world, with the rise of transgenderism, encouragements to achieve "self-actualization," prioritize "me time" and "self-care," and exhortations like "pursue your truth."

Gender identity is a subjective self-perception, entirely unique to the individual.

"Biology determines gender, not subjective belief, and the bureau should not jeopardize the legitimacy of crucial statistical information by endorsing unscientific and untrue concepts like gender identity," the two senators wrote.

"It's important to recognize that the notion of 'gender identity' is unscientific, subjective, and political.

Why else would there be a need to proselytize these same children into a world where gender unicorns, drag queens and subjective

self-identification take the place of what their eyes know to be true?

Subjective states of mind don't trump biology.

At the same time, DCF makes this very imposition more likely by leaving key determinations about applicants' fitness to a social worker's unfettered subjective discretion.

The court held that for Colorado to prosecute someone for making a "true threat" of violence, it must prove a defendant had some subjective understanding of the threatening nature of his statements.

Despite Democratic characterizations that HB 4474 is "commonsense hate crime legislation," the expansion of hate crimes laws to speech concerning an individual's subjective self-identification is anything but common.

Their task is to make transgender procedures appear constituent of "ordered liberty," when those novel procedures express a profound indifference towards given reality (biological sex) and enshrine intensely subjective, personal experience as the only valid criterion for assessing one's identity.

The movement rejects the concept of authority external to the self, recognizing no higher authority than subjective individual perception.

In this form, it displaces the sexual binary of male and female—which describes all mammals including humans—with two subjective notions:

It added the subjective categories of sexual orientation and gender identity to prohibited grounds of discrimination and expands the definition of "public accommodations."

These institutions saw the writing on the wall with the Obama administration's aggressive expansion of Title IX's application and sought assurances they wouldn't be forced—in violation of their sincerely held religious tenets and teachings—to hire same-sex couples who live together openly, to open single-sex dorms to members of the opposite sex, or to fling wide their bathrooms for individuals whose subjective self-gender identity runs counter to their biology.

“T,” in contrast, refers to those who seek to replace the binary of male and female with a subjective and fluid spectrum of “gender identity” independent of the body.

The document is replete with terms such as “gender binary,” “gender diverse,” and “gender identity,” which refer to nothing more than subjective feelings or artificial labels.

Instruction about "gender identity" and unquestioning affirmations of subjective impressions of gender have drastic consequences.

Many doctors, for instance, reasonably believe that to remove healthy organs, or to give young people puberty-blocking drugs, would harm their patients—whatever the subjective wishes of the patient.

In a critical discussion on the use of pronouns themselves, Thapar wrote: The court’s opinion in Meriwether v. Hartop is long overdue comfort to those who refuse to bend the knee on leftist groupthink—the kind that forces a subjective and manipulable view of one person’s self to become a defining reality for everyone else.

But to equate subjective belief and action with the immutable characteristic of race disparages the hard-fought gains of the Civil Rights movement and sets up a battle between religious liberty and sexual identarianism that cannot be won by painting all religious dissenters as discriminatory bigots.

Could it compel teachers to peddle unscientific notions that gender is “fluid,” or that a student’s subjective self-identity is superior to the biological reality of his or her chromosomal makeup?

The Equality Act has turned civil rights law from a shield intended to protect racial minorities from discrimination into a sword that compels conformity to subjective viewpoints on sexual orientation and gender identity.

If this bill is adopted, the fact that we are male or female is in danger of being replaced with the subjective concept of gender identity.

A legal change of this magnitude, based on subjective and transient feelings, is unprecedented.

The current culture already makes it difficult for parents to teach their children that, for instance, maleness and femaleness are

grounded on objective biological reality rather than subjective self-perceptions, or that the purpose of human sexuality is not ultimately pleasure or self-expression, but to unite a man and woman in marriage and enable them to form a family.

Radical gender ideology—the belief that whether one is male or female is rooted in subjective feeling, not objective fact—has gained devoted adherents in the most influential spheres of our culture.

Subjective gender identity or social presentation is no substitute for biological reality when it comes to medicine.

The Obama administration attempted to turn all of this upside down by claiming the word "sex" in our civil rights laws was determined by someone's subjective "gender identity."

It's an odd legal argument, given that the public meaning of the word "sex" — in 1964 and still today — refers to objective biological reality, not subjective identity.

For instance, the activists' position would either require the elimination of all sex-specific programs and facilities or allow access based on an individual's subjective identity rather than his or her objective biology.

For one, sexual orientation and gender identity are, by their very definitions, fluid and subjective.

Unfortunately, that's not preventing state agencies, activists, and litigatorsfrom making the argument that sex can mean "gender identity," a term that by its very definition is fluid and subjective.

These laws would impose ruinous liability on innocent citizens for alleged "discrimination" based on subjective and unverifiable identities, not on objective traits.

Schools would have to redo their bathroom, locker room, and dorm room policies to allow students access based on their subjective identity, rather than their objective biology.

Regardless of whether they identify as "cisgender" or "transgender," the activists promote a highly subjective and incoherent worldview.

From this idea come extreme demands for society to play along with subjective reality claims.

A prudent and natural course of treatment would enable children to "reconcile their subjective gender identity with their objective biological sex," avoiding harmful or irreversible interventions.

McCrory knows that subjective and unverifiable gender identity policies threaten the safety and privacy of women and girls in intimate facilities because they open the door to abuse by non-transgender people.